# Carter & Smith Injury Lawyers

Sugar Land, TX
Phone 346-555-2185

## Settlement Demand

8-17-24

Claims Department
Harbor Point Mutual Auto Insurance

Re: Claim C-1295 - Demand for settlement

Dear Claims Representative:

Our office represents Dylan Thomas in connection with the motor vehicle collision that occurred on 6-10-23. Our client was lawfully traveling in their lane when your insured's vehicle crossed the centerline and struck our client's car head-on. Although the impact occurred at a low rate of speed, the force of the collision was suffiicent to cause significant soft tissue injuries, including a cervical strain and a lumbar strain. Our client sought prompt medical evaluation at the scene and has since completed a course of physical therapy and follow-up care. Treating providers have documented restricted range of motion, muscle spasm, and ongoing pain that interferes with daily activities, work duties, and sleep.

Liability is clear. The police report and the physical evidence support the conclusion that your insured failed to keep a proper lookout and to remain within their own lane of travel. There is no reasonable basis to dispute fault.

Our client's damages include past and future medical expenses, lost wages, and the pain and suffering caused by these injuries. Taking all of these losses into account, we are authorized to resolve this claim for $98,000.00. This demand will remain open for thirty days from the date of this letter. If we do not receive a satisfactory response within that period, we will file suit without further notice and seek all damages available under law.

Expert review: Jeffrey Lawrence, orthopedic surgeon

Sincerely,

Carlos Fox
Carter & Smith Injury Lawyers